

2:00 PM

LINE 11

26-CIV-00808

TREMIN CORPORATION VS. MICHAEL HARBOUR, ET AL.

TREMIN CORPORATION
MICHAEL HARBOUR

PATRICK J. WHITEHORN
CHARLES S. BRONITSKY

MOTION TO REMOVE MECHANIC'S LIEN

TENTATIVE RULING:

On the Motion to Remove Mechanic's Lien by Defendants and Cross-Complainants Michael Harbour and Andres Mediavilla ("Defendants"), the Court continues the motion to July 21, 2026 at 2:00 p.m. in Department 4 to allow for further briefing on the issue of the illegality of the contract. Simultaneous briefing of no more than ten (10) pages for the memorandum of points and authorities shall be filed and served by July 13, 2026.

Plaintiff Tremin Corporation dba Bay West Builders ("Plaintiff"), a contractor, brings this action seeking payment for work performed on a home improvement contract for real property owned by Defendants. The Complaint alleges that the parties entered into an oral agreement for this work on or about December 9, 2021. (Complaint, ¶ 9.) On November 5, 2025, Plaintiff recorded a Notice and Claim of Mechanics' Lien against the property. (Complaint, Exh. B.) The Complaint includes a cause of action to foreclose on the mechanic's lien. Defendants bring this Motion seeking to remove the mechanic's lien.

As a threshold matter, Defendants fail to cite any legal authority for bringing this Motion or the legal standard that applies to this Motion. (See Cal. Rules of Court, rule 3.1113(b) [memorandum must contain a concise statement of the law, evidence and arguments relied on, and a discussion of the statutes, cases and textbooks cited in support of the position advanced]; *id.*, rule 3.1110(a) ["A notice of motion must state in the opening paragraph the nature of the order being sought and the grounds for issuance of the order].) The Court does not need further briefing on this issue, but in the future counsel should provide the legal authority for the motion.

"A motion to remove a mechanic's lien is recognized as a device that allows the property owner to obtain speedy relief from an unjustified lien or a lien of an unjustified amount without waiting for trial on the action to foreclose the lien. (*Howard S. Wright Construction Co. v. Superior Court* (2003) 106 Cal.App.4th 314, 318 (*Howard S. Wright*), citing *Lambert v. Superior Court* (1991) 228 Cal.App.3d 383.) The inquiry on a motion to remove a mechanic's lien is limited to the probable validity of the lien. (*Id.*, citing *Lambert, supra* at p. 387.) The determination is not the ultimate merit of the contractor's claim, but whether the contractor should be entitled to retain the security of the mechanic's lien pending resolution of the matter. (*Cal. Sierra Construction, Inc. v. Comerica Bank* (2012) 206 Cal.App.4th 841, 850.) The granting of a motion to remove a mechanic's lien is essentially a judgment on the underlying foreclosure action that no lien exists

and removes the lien from the public records upon recordation of the judgment. (*Howard S. Wright, supra*, 106 Cal.App.4th at p. 318.)

Defendants raises two argument in support of this Motion. The first argument is that the agreement does not comply with Business and Professions Code section 7159 and therefore it is illegal. The second argument is that the lien is invalid because it was not timely recorded.

Whether contract is illegal

Business and Professions Code section 7159, subdivision (c), sets forth provisions for a home improvement contract, including that the contract be in writing and signed and dated by the parties. (See Bus. & Prof. Code, § 7159, subd. (c).) Since the Complaint alleges that the parties entered into an oral agreement to perform the work on the property (Complaint, ¶ 9), Defendants contend the agreement is illegal. Defendants do not cite any legal authority to support that failure to comply with section 7159 voids the agreement as illegal. On the other side, Plaintiff does not address this argument in opposition.

The court notes that a wide range of exceptions has been recognized to section 7159. (See *Asdourian v. Askew* (1985) 38 Cal.3d 276, 291 (*Asdourian*), superseded by statute on other grounds as stated in *Tufeld Corp. v. Beverly Hills Gateway, L.P.* (2022) 86 Cal.App.5th 12, 27-29.) In *Asdourian*, the court concluded that a contract in violation of section 7159 did not present the type of illegality that automatically renders a contract void, but rather voidable depending on the factual context and the public policies involved. (*Id.* at p. 293.) Further, in compelling cases, illegal contracts will be enforced in order to avoid unjust enrichment to a defendant and a disproportionately harsh penalty to the plaintiff. (*Id.* at p. 292.)

Since neither party has adequately briefed this issue, the parties are to brief this issue and whether the failure to comply with section 7159 warrants removing the lien. The parties may also submit any relevant evidence in support of their position.

Whether Plaintiff's recorded lien is untimely

The parties disagree as to whether Plaintiff timely recorded its lien and therefore whether Plaintiff is able to establish the probable validity of its lien.

“A direct contractor may not enforce a lien unless the contractor records a claim of lien after the contractor completes the direct contract, and before the earlier of the following times: (a) Ninety days after completion of the work of improvement. (b) Sixty days after the owner records a notice of completion or cessation.” (Civ. Code, § 8412.) Civil Code section 8180 sets forth the acts that signify completion of the work of improvement, stating:

§ 8180. Acts signifying completion

(a) For the purpose of this title, completion of a work of improvement occurs upon the occurrence of any of the following events:

- (1) Actual completion of the work of improvement.
- (2) Occupation or use by the owner accompanied by cessation of labor.
- (3) Cessation of labor for a continuous period of 60 days.
- (4) Recordation of a notice of cessation after cessation of labor for a continuous period of 30 days.

...

(Civ. Code, § 8180, subd. (a).)

Under Civil Code section 8180, subdivision (a)(1), Defendants claim that actual completion of the project took place by April 2025 because that is the last invoice provided by Plaintiff's counsel and has the same outstanding balance alleged in the Complaint. (Bronitsky Decl., and Exh. 1.) Plaintiff's evidence supports that the work was not actually completed by that time though. Towes, Plaintiff's Superintendent, states that at Harbour's request, he performed work on various items on the project on June 13, 2025 and June 16, 2025. (Towes Decl.) Defendant provides no evidence in reply to refute Towes' Declaration. Therefore, this argument fails.

Under Civil Code section 8180, subdivision (a)(2), Defendants claim that completion of the work occurred on March 30, 2025 because Defendants moved into their house on that date. (Harbour Decl.) Section 8180, subdivision (a)(2) provides not only for occupation by the owner, but it must also be accompanied by cessation of labor. Once again, Towes' Declaration supports that cessation of labor did not occur until June 2025. Plaintiff has not shown that the lien is therefore untimely under this subdivision.

Moreover, Plaintiff's argument is persuasive that its lien is timely under Civil Code section 8180, subdivision (a)(3). Once again, Towes' Declaration supports that labor still took place as of June 16, 2025. Even if labor ceased as of that date, 60 days thereafter is August 15, 2025. Plaintiff then had 90 days from this cessation of work, i.e. November 13, 2025, to file the lien. Plaintiff recorded the lien on November 5, 2025. (Complaint, Exh. B.)

The court therefore DENIES Defendants' Motion on this ground because it finds that Plaintiff has established the probable validity of its lien being timely.

Defendants' Evidentiary Objections to the Gray Declaration

Paragraphs 10, 18: OVERRULED.

Paragraphs 12-14, 19-21, and Exhs. B, C, G, H and I: SUSTAINED based on lack of foundation/personal knowledge and hearsay.

Paragraph 17 and Exhs. E and F: SUSTAINED based on lack of foundation/personal knowledge to “One container was relocated on or around June 17, 2025, and another container was relocated from the Project site on July 2, 2025. Attached hereto as Exhibit E is a true and correct copy of the return ticket receipt from the pick up of one container on or around June 17, 2025.”
OVERRULED to the remainder of paragraph 17 and Exhibit F.

2:00 PM

LINE 12

26-CIV-01102

CARRIE YAN VS. COUNTY OF SAN MATEO

CARRIE YAN
COUNTY OF SAN MATEO

BART A. SEEMEN
SAN MATEO COUNTY ATTORNEY'S
OFFICE

DEMURRER TO PLAINTIFF'S COMPLAINT

TENTATIVE RULING:

Defendant San Mateo County's demurrer to all causes of action in the complaint filed by Plaintiff Carrie Yan on February 13, 2026 is **OVERRULED IN PART** and **SUSTAINED IN PART**. Leave to amend the sixth cause of action is **GRANTED**.

A. Background

This is an employment action arising out from Plaintiff Carrie Yan's May to December 2025 employment with San Mateo County as an Extra Help Benefits Analyst I.

From May 2025 through approximately September 2025, Yan engaged in her training period with the County and received a review rating of "competent" at her training graduation. (Compl. ¶¶ 20 & 21.) Plaintiff was then placed at a call center and she began to see a therapist because of worsening mental health symptoms related to the "stress, anxiety, fatigue, and burnout" from working at the call center in September and October. (Compl. ¶¶ 24 & 25.)

By October 2025, Yan spoke with her supervisor, Griselda Ruiz, and requested a transfer to a non-call center position and was told that transfers were not permitted until an employee had completed six months of employment with the County, and that transfers were based on seniority. (Compl. ¶ 26.)

In mid-November 2025, Yan submitted an accommodation request to the County's Human Resources Department. Yan alleges that the County failed to engage in the interactive process regarding her need for accommodation. (Compl. ¶¶ 30 & 31.)

In December 2025, plaintiff began seeing a new therapist and voluntarily elected to resign from her position on December 19, 2025. This was less than seven months after starting employment and three months after beginning her role at the call center. (Compl. ¶¶ 34 & 38.)

On February 13, 2026, plaintiff filed the underlying complaint which raises six causes of action under the California Fair Employment and Housing Act (Gov. Code, § 12900 et seq.) ("FEHA") and Labor Code section 1102.5. The causes are:
